

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)		1. SOLICITATION NO. 140P4526Q0015	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 04/21/2026	PAGE OF PAGES 1 58
IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					
4. CONTRACT NO.			5. REQUISITION/PURCHASE REQUEST NO. 0044037244	6. PROJECT NO.	
7. ISSUED BY NPS, NER - NPNH 210 New York Ave. Contracting Office Staten Island NY 10305		CODE PNP	8. ADDRESS OFFER TO		
9. FOR INFORMATION CALL	a. NAME Roselyn Sessoms		b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 7188156152		

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

140P4526Q0015: WATER MAIN REPAIR, MILLER FIELD, GATEWAY NATIONAL RECREATION AREA, STATEN ISLAND, NY

This is a total small business set aside in accordance with FAR Subpart 19. The NAICS code for this procurement is 237110 Water and Sewer Line and Related Construction with a Small Business Size Standard is \$45.0 Million. The period of performance shall commence within five (5) calendar days of the Notice to Proceed. The performance should be completed within thirty (30) calendar days after the Notice to Proceed is issued.

The order of magnitude for this project is estimated to between \$100,000 and \$250,000. The successful offeror must be registered in SAM (System for Award Management) and have current online Representations and Certifications. Please access <http://www.sam.gov> to update your records prior to submitting final offer.

This solicitation is a firm fixed price construction service to perform water main repairs at Miller Field, Staten Island Unit, Gateway National Recreation Area, Staten Island, NY.

Continued...

11. The contractor shall begin performance within <u>5</u> calendar days and complete it within <u>30</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See FAR 52.211-10 Alt. I).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☒ YES ☐ NO	12b. CALENDAR DAYS 10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1400 (hour) local time 05/14/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY PNP DOI, NPS, NER - NPNH 210 New York Ave. Staten Island NY 10305	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u> 1 </u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) Roselyn Sessoms
30b. SIGNATURE	31b. UNITED STATES OF AMERICA BY
30c. DATE	31c. DATE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140P4526Q0015	PAGE 3 OF 58
NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	The work includes all labor, materials, supplies, general conditions, tools, equipment, mobilization, transportation, supervision, incidentals, and waste disposal to perform water main repairs. This project involves the repair of one water main pipe and two water supply pipes at Miller Field to restore proper water distribution and provide adequate water supply and prevent ponding. The work involves repairing breaks in water pipes and valve at Miller Field Units shown in the Statement of Work. Work includes necessary shutdowns, repairs, system testing, and site restoration. This Request for Quotation (RFQ) is made using the procedures of Federal Acquisition Regulations (FAR) Part 13, Simplified Acquisition Procedures and FAR Part 36, Construction and Architect Engineer Contracts. The National Park Service, Contracting Operations (ConOps) East Northeast Region (NER)NY MAB0, shall contemplate award in accordance with Section M, Evaluation Factors for Award, of the RFQ. Note: A certificate of insurance, payment and performance bonds are required. If quote is over \$150,000 - bid bond is required. Site Visit: Please contact Rafael Hernandez or Jim Estioco to arrange a site visit. Email: rafael_hernandez@nps.gov, Phone: (347) 672-3080. Email: jim_estioco@nps.gov, Phone; (718) 702-5691 Department of Labor wage rates apply and are included as part of this solicitation package. See Section J Refer to Section L and M for Instructions on submitting your offer. Any questions regarding this solicitation shall Continued...				

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00010	be submitted in writing by Thursday, May 7, 2026 2:00p.m.to: roselyn_sessoms@ios.doi.gov. Delivery: 04/30/2026 Delivery Location Code: 0011286210 DOI, NPS, GATE 210 NEW YORK AVENUE STATEN ISLAND NY 10305 US				
	Emergency Repairs-Miller Field: The contractor will provide all the tools, material, and labor to accomplish the water main repairs at Miller Field at the Staten Island Unit of Gateway National Recreation Area, Staten Island, NY in accordance with the Statement of Work. Product/Service Code: J045 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- PLUMBING, HEATING, AND WASTE DISPOSAL EQUIPMENT				

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PART I – THE SCHEDULE

SECTION A – SOLICITATION / CONTRACT FORM

Solicitation, Offer, and Award (SF-1442) - pages 1- 4 of this package

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SECTION B – BID SCHEDULE

Offerors are required to submit, at a minimum, an offer that conforms to the solicitation documents with pricing for Base line items and all option line items. Failure to do so may render the proposal unacceptable. If no specific line item exists for a portion of the work, include the costs in a related item. In case of error in calculation of extended prices, the unit price governs. In case of summation error, the total corrected amounts govern. Round totals & extended prices to whole dollars. Refer to section “H” of this solicitation for additional information regarding contract options.

Contract Price Schedule Template					
National Park Service (NPS) - Denver Service Center (DSC) 3-13-18					
Solicitation Number: PARK - PMIS: GATE 340516 (Project Management Information System) Developed Area: SIU MIFI (Staten Island Unit Miller Field) Project Title: Cyclic Repairs to Miller Field Water Distribution System					
Notice: Offerors are required to submit, a minimum, an offer that conforms to the solicitation documents with pricing for Base line items and all option line items. Failure to do so may render the proposal unacceptable. On lump-sum line items, provide the total price only. For all unit-priced line items, provide the unit price and the extended total price. If no specific line item exists for a portion of the work, include the costs in a related item. In case of error in calculation of extended prices, the unit price governs. In case of error in summation, the total of the corrected amounts govern. Round totals and extended prices to whole dollars.					
Contract Line Item Number (CLIN)	Contract Line Item (CLI) Title	Quantity	Unit of Measure	Unit Price	Total Price
1	Replace Existing Gate Valves at Meter Pits				\$0.00
2	Locate and Repair Active Leak				\$0.00
TOTAL BASE PRICE (Contract Line Item Number 1 through 2) -----					\$0.00
3	OPTION A: Establish Water Distribution Isolation Zones				\$0.00
TOTAL PROPOSED PRICE - BASE PLUS ALL OPTIONS (Contract Line Item Number 1 through 3) -----					\$0.00
All measurement and payment information is included in Division 01 Specifications Section 01 27 00 Definition of Contract Line Items.					

FAR 36.204 Disclosure of the magnitude of construction projects

The Government’s estimate is:
between \$100,000 and \$250,000.

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SECTION C – SPECIFICATIONS/DRAWINGS

The work of this contract is for water main repairs.

Project Location: Gateway National Recreation Area, Miller Field, Staten Island, NY

project description:

The work involves repairing breaks in water pipes and valve at Miller Field in the locations shown in the diagram above. Work includes necessary shutdowns, repairs, system testing, and site restoration. All work will be performed in accordance with state and local codes, all applicable agency regulations, and will adhere to prevailing wage requirements.

Specifications and drawings are attached and incorporated herein by reference. Refer to section J.

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SECTION D – PACKAGING AND MARKING

There are no clauses in this section.

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SECTION E – INSPECTION AND ACCEPTANCE

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

[Acquisition.GOV](https://www.acquisition.gov) | www.acquisition.gov

52.246-12 Inspection of Construction (Aug 1996)

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SECTION F – DELIVERIES OR PERFORMANCE

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

[Acquisition.GOV](https://www.acquisition.gov) | www.acquisition.gov

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.236-15 SCHEDULES FOR CONSTRUCTION CONTRACTS (APR 1984)

52.242-14 SUSPENSION OF WORK (APR 1984)

52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 5 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 30 calendar days after the date the Contractor receives the notice to proceed. The time stated for completion shall include final cleanup of the premises.

(End of clause)

F.1 – DELIVERABLE (POST-AWARD): CONTRACTOR'S DAILY LOGS

Contractor shall prepare a daily log for each day work is performed under this contract. Copies of daily logs shall be submitted to the Contracting Officer, and may be compiled and submitted weekly, with payroll.

The contractor may choose to use its own format as long as the following elements are included on the log:

- (a) Project Name
- (b) Contract number
- (c) Date
- (d) Prime Contractor and/or Subcontractor
- (e) Work performed, including number of employees by job categories (indicate if "prime" or "sub")
- (f) Heavy equipment on job, hours worked (indicate if "prime" or "sub")
- (g) Materials delivered
- (h) Official visitors to site
- (i) Inspections performed
- (j) Verbal instruction received from government on construction deficiencies
- (k) Certification (prime contractor's signature/COR's signature)

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SECTION G – CONTRACT ADMINISTRATION DATA

G.1 POST AWARD CONFERENCE

Prior to commencement of work, the CO or COR and/or POC will arrange a meeting with the contractor to discuss the contract terms and work performance requirements. A work progress schedule will be developed at this meeting.

It will be scheduled as soon as possible after the date of the contract award. All dates and locations of the conference will be mutually agreed upon, and may be held via teleconference or onsite.

G.2 GOVERNMENT FURNISHED PROPERTY

The Government will provide the following item(s) of Government property to the Contractor for use in the performance of this contract. This property shall be used and maintained by the Contractor in accordance with the provisions of the "Government Property" FAR clause contained elsewhere in the contract.

Item No.	Property Description	Qty	Location	Date Available or Delivery Date
	N/A			

G.3 DESIGNATION OF CONTRACTING OFFICERS REPRESENTATIVE (COR) AND/OR POINT-OF-CONTACT (POC)

- A. The Contracting Officer will designate an individual as Contracting Officer's Representative (COR) at time of award of the contract in accordance with DIAR 1452.201-70 Authorities and Delegations (SEP 2011). The name will be designated on a letter or form.
- B. The COR is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual documents executed by the Contracting Officer prior to completion of the contract.
- C. The Contracting Officer should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the Contracting Officer's Representative provided they do not affect the delivery schedule or performance period stated in the contract.)
- D. On all matters that pertain to the contract terms the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR's requests effort outside the scope of the contract, the Contractor should so advise the Contracting Officer's Representative. If the COR persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.
- E. The COR's major duties and responsibilities are contained in the Forest Service Handbook of Contract Administration. The COR is delegated full authority under this contract except for the following actions which are reserved for the Contracting Officer:
 1. Approve Change Orders and Modifications
 2. Take action to terminate the contract for default or Government convenience.
 3. Make contract adjustments under the Differing Site Conditions clause.
 4. Grant extensions of contract time.
 5. Approve assignment of claims.
 6. Make final decisions under the Disputes clause.

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7. Make final acceptance under the contract.
8. Make final decisions under the Suspension of Work clause.
9. Make equitable adjustments.
10. Authorize change in amount of Payment Retention.
11. Approve subcontractors.
12. Approve payments with deductions or final payment.
13. Approve use and possession prior to completion.
14. Enforce the warranty provisions.
15. Issue any direction that would result in a possible change to contract requirements.

F. The POC will be used if an official certified COR cannot be designated at the time of award. The POC will not be designated in writing and will assist the CO in the day-to-day on-site administration of the contract requirements and/or performance.

- The POC is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual documents executed by the CO prior to completion of the contract.
- The CO should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the OCO provided they do not affect the delivery schedule or performance period stated in the contract.)
- On all matters that pertain to the contract terms the Contractor must communicate with the CO. Whenever, in the opinion of the Contractor, the POC requests effort outside the scope of the contract, the Contractor should so advise the CO. If the POC persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.
- The POC has limited authority under this contract and responsibilities may include, but are not limited to:
 1. Determining the compliance and adequacy of performance by the Contractor in accordance with the terms and conditions of this contract;
 2. Requesting removal of unsuitable contractor employees;
 3. Ensuring adequacy of schedule and Quality Control Plan, including changes;
 4. Ordering re-performance of unacceptable work or performance by other means, etc.
 5. Approval or invoices and submitted reports
 6. Requesting any the work contained within specific *Task Order's*

G.4 ADMINISTRATIVE CONTRACTING OFFICE

Contracting Officer administrating the Contract will be:

Roselyn Sessoms
Contracting Officer
National Park Service
ConOps East, NY MABO
Telephone No. 718-815-6152

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Email: roselyn_sessoms@ios.doi.gov

Contracting Officer's Representative (COR) for this contract will be:

Jim Estioco
Project Manager
Gateway National Recreation Area
Telephone No. 718-702-5691
Email: jim_estioco@nps.gov

(b) The Contracting Officer (CO) is the only person authorized to approve changes or modify any of the requirements under this contract and notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely with the CO. In the event the contractor effects any such change at the direction of any person other than the CO, the change will be considered made without authority and no adjustment will be made in the contract price to cover increase in costs incurred as a result thereof.

(c) Contractual problems, of any nature, which might occur during the life of the contract, must be handled in conformance with very specific public laws and regulations (e.g., Federal Acquisition Regulation), and must be referred to the CO for resolution. Only the CO is authorized to formally resolve such problems. Therefore, the contractor is hereby directed to bring all such contractual problems to the immediate attention of the CO.

(d) Any request for contract changes/modifications shall be submitted to the CO.

(e) The contractor and the Government may agree to perform a no-cost field change. Field changes are made when the change appears to be mutually beneficial to all parties and would not require changing the negotiated line items. All field changes must be approved by the CO prior to execution.

(f) All correspondence concerning this contract, such as requests for information (RFI), explanation of terms, and contract interpretation, shall be submitted to the CO.

FINAL PAYMENT

Final payment will be made only after receipt of all payrolls to include subcontractors, SF 1413 Statement of Acknowledgement for each subcontractor, project schedule, updated progress reports, material submittals, test reports, as-built drawings, warranty of construction, release of claims and any other documents requested by the contracting office as applicable. Contractor must provide a signed copy of the 'Release of Claims' to the Contract Administrator upon submittal of final invoice.

AVAILABILITY OF UTILITIES SERVICES

Notwithstanding the provisions of contract clause FAR 52.236-14, Availability and Use of Utility Services, all reasonable required amounts of water, gas, electricity, etc., essential to contract performance shall be made available, at no cost to the contractor, from existing systems, outlets, and supplies. All temporary connections, outlets, and distribution lines as may be required will be installed by the contractor at the contractor's own expense.

UTILITIES CONSERVATION

The contractor will be required to participate in government energy conservation programs. For the purpose of this contract, utilities such as water, electricity, etc., will be furnished by the government at no cost to the contractor.

OCCUPATIONAL SAFETY AND HEALTH ACT (OSHA) INSPECTIONS

The contractor shall be subject to inspections under the OCCUPATIONAL SAFETY AND HEALTH ACT (OSHA) program by inspectors of the Department of Labor.

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INTERIM AND FINAL INSPECTIONS

1. Prior to covering, enclosing, or hiding any of type work, the Contractor must contact the Government representative to perform an interim inspection. Failure to contact the Government representative perform an interim inspection prior to concealment may result in the Contractor being required to uncover performed work sufficiently to allow for proper inspection.

2. When ready for final inspection, the Contractor shall notify the CO and COR, requesting a final inspection in writing to the CO. The final inspection shall normally be requested a minimum of three (3) calendar days before the desired date or as otherwise negotiated with the Contracting Officer.

3. The final inspection will be onsite with the Contractor, the Contracting Officer's Representative, and Contract Specialist/Contracting Officer (when possible).

G.5 SYSTEM FOR AWARD MANAGEMENT (SAM)

The General Service Administration (GSA) Office of Governmentwide Policy is consolidating the governmentwide acquisition and award support systems into one new system – the System for Award Management (SAM). SAM is streamlining processes, eliminating the need to enter the same data multiple times, and consolidating hosting to make the process of doing business with the government more efficient.

The Entity Management functional area of SAM, formerly Central Contractor Registration (CCR), Online Representations and Certifications (ORCA), and Federal Agency Registration (FedReg), is the primary database for the U.S. Federal Government to manage information on potential government business partners or federal financial assistance recipients.

If you have previously registered your entity in CCR, ORCA, or FedReg all of your entity's information has been brought into SAM. You just need to set up a SAM account, migrate your roles and update/renew your entity record in SAM as needed. See the following website <https://www.sam.gov/portal/public/SAM/> for more information and assistance on registering your entity in SAM. In order to be eligible for an award, potential contractors must comply with all requirements of FAR Clause 52.204-7, System for Award Management.

G.6 BIOBASED REPORTING REQUIREMENTS

Pursuant to a legislative mandate in the 2008 Farm Bill, prime contractors are required to report the category of product, type of product, and dollar value of all USDA designated biobased products that were purchased in the performance of federal contracts. Federal contractors are required to report annual biobased product purchases made under their service and construction contracts. Based on the Federal Acquisition Regulation (FAR) Clause 52.223-2, Reporting of Biobased Products under Service and Construction Contracts, reporting of biobased product purchases is completed through a portal in the System for Award Management (SAM) at <http://www.sam.gov>.

If a contract contains FAR Clause 52.223-2, the contractor must report all biobased purchases through SAM.

The Reporting Requirement(s):

- The reporting requirement became effective September 3, 2013;
- It applies to services and construction contractors where contracts have a FAR Clause 52.223-2 Reporting of Biobased Products under Service and Construction Contracts, requiring the reporting of biobased product purchases;
- Contractors must report their purchases of biobased products to a reporting portal within SAM;
- Contractors must report the category, product type and dollar value of any USDA designated biobased products purchased by the Contractor; and
- Reporting must be completed by October 31st for the previous entire fiscal year (October 1 - September 30).

To Meet the Requirement(s) Contractors must:

- Access <http://www.sam.gov>;

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- Complete the required information within the portal and provide documentation to the Contracting Officer;
- If the applicable contract is not accessible in SAM, the contractor should contact their Contracting Officer.

Actions that may be taken to Meet Reporting Requirement(s) by Contracting Officer:

- Require a copy of the reporting data from the Contractor as required in FAR Clause 52.223-2;
- Remind the contractor, as necessary, of the requirement to report BioPreferred product types and dollar value, if any, into SAM at <http://www.sam.gov>. This includes any BioPreferred products used in performing contract-related services or in delivering contract-related products;
- Cure Notice may be issued by Contracting Officer as required by termination clauses.
- Upon failure to correct deficiency issued through Cure Notice contract may be terminated for Cause (FAR 52.212-4) of Terminated for Default under FAR Part 49.

G.7 NOTIFICATION OF SUBCONTRACTING

The contractor shall with 14 days after award notify the Contracting Officer upon entering into any subcontract arrangement, as required by FAR 52.222-11 – Subcontracts (Labor Standards). The subcontractor shall have the experience and be equipped for such work. The written notification shall be completed :

- A. The name, address and telephone number of the subcontractor.
- B. The date upon which the subcontract was entered into and its duration.
- C. A detailed description of the work being subcontracted including a listing of contract items, units, etc., as appropriate.
- D. Documentation of the subcontractor's representative authority.

Subcontracting any portion of the contract shall not relieve the Prime Contractor of any responsibility under this contract. Any subcontract agreement shall contain all terms and conditions of the prime contract.

Construction Contract Administration

Federal Acquisition Regulation (FAR) 36.211(b) requires agencies provide description of policies and procedures that apply to definitization of equitable adjustments for change orders under construction contracts and data on the time required to definitize equitable adjustments for change orders under construction contracts. This information can be found at: <https://www.doi.gov/pam/acquisition/policy/constructioncontract>.

Contractor Performance Assessment Reporting System (NOV 2015)

In accordance with DOI and NPS policy, past performance evaluations *may* be prepared for this acquisition. For more information see the Contractor Performance Assessment Reporting System (CPARS), available online at <https://cpars.gov/>.

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SECTION H – SPECIAL CONTRACT REQUIREMENTS

SPECIAL REQUIREMENT 1: PRESERVATION OF HISTORICAL AND ARCHEOLOGICAL DATA

1. The Historic and Archeological Data Preservation Act of 1974, provides for the preservation of historical and archeological data that might otherwise be lost as the result of alterations to the terrain caused by a federal or federally licensed activity or program.
2. If, in connection with operations under this contract, the Contractor, subcontractors, or the employees of any of them, discovers, encounters or becomes aware of any possible historical or archeological data, objects or sites of cultural value on the project area, such as historical ruins, graves or grave markers, fossils, or artifacts, the Contractor shall immediately suspend all operations in the vicinity of the cultural value and shall notify the Contracting Officer in writing, giving the location and nature of the findings. No objects of cultural resource value may be removed.
3. Where appropriate by reason of discovery, the Contracting Officer may order delays in the time of performance and/or changes in the work. If such delays and/or changes are ordered, the time of performance and contract price shall be adjusted in accordance with the Changes clause.
4. The Contractor will be responsible for protecting the cultural resources within the affected area from damage. In addition, the contractor will be liable for all damage to the identified cultural resources caused by their actions or the actions of their agents or representatives. The Contractor shall immediately notify the Contracting Officer or his representative if any damage occurs to any cultural resource and immediately suspend work in the area in which damage has occurred until authorized to proceed.

SPECIAL CLAUSE 1: KEY PERSONNEL

(a) The Contractor shall assign to this contract the following key personnel: *Project Manager and/or Site Forman or equivalent positions*

(b) During the first 30 days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 30-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 7 calendar days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within 7 calendar days after receipt of all required information of the decision on substitutions.

(End of clause)

SPECIAL CLAUSE 2: RESTRICTIONS AGAINST DISCLOSURE

(a) The Contractor agrees, in the performance of this contract, to keep all information contained in source documents or other media furnished by the Government in the strictest confidence. The Contractor also agrees not to publish or otherwise divulge such information in whole or in part in any manner or form, or to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work provided herein, i.e., on a "need to know" basis. The Contractor agrees to immediately notify in writing, the Contracting Officer, named herein, in the event that the Contractor determines or has reason to suspect a breach of this requirement.

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(b) The Contractor agrees not to disclose any information concerning the work under this contract to any persons or individual unless prior written approval is obtained from the Contracting Officer. The Contractor agrees to insert the substance of this clause in any consultant agreement or subcontract hereunder.

(End of Clause)

DIAR 1452-201-70 - AUTHORITIES AND DELEGATIONS (SEPT 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum.

The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph.

(c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

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DIAR 1452.204-70 RELEASE OF CLAIMS (JUL 1996)

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

DIAR 1452.228-70 Liability Insurance (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$200,000.00 each person*
\$500,000.00 each occurrence*
\$20,000.00 property damage*

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INTERNET PAYMENT PLATFORM (APR 2013)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract. The IPP website address is: <https://www.ipp.gov>.

The contractor shall submit a draft Invoice Package, including copies of the following documents, to the National Park Service's (NPS) Contracting Officer's Representative (COR) a minimum of 5 working days prior to submittal of the formal Invoice through IPP. Within 5 working days of receipt, the COR shall provide an acceptability recommendation to the contractor. If the COR recommends acceptance, the contractor shall submit a copy of the final version of the COR's checklist and the Invoice Package to the NPS through IPP.

1. Completed copy of the COR's final Construction Payment Request Checklist (Submit only with the formal submittal to IPP)
2. Completed copy of the Pay Estimate Form (including signed certification of subcontractor payments)
3. Completed copy of the Limitations on Subcontracting Report (Include if acquisition is being set-aside and clause 52.219-14 is included)
4. Information required by contract clause 52.232-27, Prompt Payment for Construction Contracts
5. A copy of the current construction schedule
6. A copy of the current Schedule of Values.

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The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org -or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Clause)

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PART II – CONTRACT CLAUSES

SECTION I – CONTRACT CLAUSES

FAR 52.213-4 - Terms and Conditions -- Simplified Acquisitions (Other Than Commercial Items) (JAN 2025)(DEVIATION FEB 2025) (Modified)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses that are incorporated by reference:

(1) The clauses listed below implement provisions of law or Executive order:

- (i) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (ii) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (iii) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (iv) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328), unless the agency grants an exception - see paragraph (b) of 52.204-27.
- (v) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) (Pub. L. 115–390, title II).
- (vi) [52.222-3](#), Convict Labor (JUN 2003) (E.O. 11755).
- (vii) [Reserved] [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).
- (viii) [Reserved] [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).
- (ix) [52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- (x) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (xi) [52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).
- (xii) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) ([Pub. L. 108-77](#) and 108-78 ([19 U.S.C. 3805 note](#))).

(2) Listed below are additional clauses that apply:

- (i) [52.232-1](#), Payments (APR 1984).
- (ii) [52.232-8](#), Discounts for Prompt Payment (FEB 2002).
- (iii) [52.232-11](#), Extras (APR 1984).
- (iv) [52.232-25](#), Prompt Payment (JAN 2017).
- (v) [52.232-39](#), Unenforceability of Unauthorized Obligations (JUN 2013).
- (vi) [52.233-1](#), Disputes (MAY 2014).
- (vii) [52.244-6](#), Subcontracts for Commercial Items (JUL 2021).
- (viii) [52.253-1](#), Computer Generated Forms (JAN 1991).

(b) The Contractor shall comply with the following FAR clauses, incorporated by reference, unless the circumstances do not apply:

(1) The clauses listed below implement provisions of law or Executive order:

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- (i) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
- (ii) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020)(Pub. L. 109-282) ([31 U.S.C. 6101 note](#)) (Applies to contracts valued at or above the threshold specified in FAR [4.1403](#)(a) on the date of award of this contract).
- (iii) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (JAN 2025) ([E.O. 13126](#)) (Applies to contracts for supplies exceeding the micro-purchase threshold, as defined in [2.101](#) on the date of award of this contract).
- (iv) [52.222-20](#), Contracts for Materials, Supplies, Articles, and Equipment., Contracts for Materials, Supplies, Articles, and Equipment (JUN 2020) ([41 U.S.C. chapter 65](#)) (Applies to supply contracts over the threshold specified in FAR 22.602 on the date of award of this contract, in the United States, Puerto Rico, or the U.S. Virgin Islands).
- (v) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)) (Applies to contracts valued at or above the threshold specified in FAR [22.1303](#)(a) on the date of award of this contract).
- (vi) [52.222-36](#), Equal Employment for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)) (Applies to contracts over the threshold specified in FAR [22.1408](#)(a) on the date of award of this contract, unless the work is to be performed outside the United States by employees recruited outside the United States). (For purposes of this clause, "United States" includes the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, and Wake Island.)
- (vii) [52.222-37](#), Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212) (Applies to contracts valued at or above the threshold specified in FAR [22.1303](#)(a) on the date of award of this contract).
- (viii) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)) (Applies to service contracts over \$2,500 that are subject to the Service Contract Labor Standards statute and will be performed in the United States, District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, or the outer Continental Shelf).
- (ix) (A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627) (Applies to all solicitations and contracts).
- (B) Alternate I (MAR 2015) (Applies if the Contracting Officer has filled in the following information with regard to applicable directives or notices: Document title(s), source for obtaining document(s), and contract performance location outside the United States to which the document applies).
- (x) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (Applies when [52.222-6](#) or [52.222-41](#) are in the contract and performance in whole or in part is in the United States (the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act ([43 U.S.C. 1331, et seq.](#)))).
- (xi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706) (Applies when [52.222-6](#) or [52.222-41](#) are in the contract and performance in whole or in part is in the United States (the 50 States and the District of Columbia.))
- (xii) [52.223-5](#), Pollution Prevention and Right-to-Know Information (MAY 2024) ([42 U.S.C. 11001-11050](#) and [13101-13109](#)) (Applies to services performed on Federal facilities).
- (xiii) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) ([42 U.S.C. 7671, et seq.](#)) (Applies to contracts for products as prescribed at FAR [23.109](#)(d)(1)).
- (xiv) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) ([42 U.S.C. 7671, et seq.](#)) (Applies to maintenance, service, repair, or disposal of refrigeration equipment and air conditioners).
- (xv) [52.223-20](#), Aerosols (MAY 2024) ([42 U.S.C. 7671, et seq.](#)) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons as a propellant or as a solvent; or contracts for maintenance or repair of electronic or mechanical devices).

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- (xvi) [52.223-21](#), Foams (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons as a foam blowing agent; or contracts for construction of buildings or facilities.
- (xvii) [52.223-23](#), Sustainable Products and Services (MAY 2024)[(DEVIATION FEB 2025)] ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)) (Applies to contracts when the agency identifies in the statement of work, or elsewhere in the contract, the sustainable products and services that apply to the acquisition).
- (xviii)
 - (A) [52.225-1](#), Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 67) (Applies to contracts for supplies, and to contracts for services involving the furnishing of supplies, for use in the United States or its outlying areas, if the value of the supply contract or supply portion of a service contract exceeds the micro-purchase threshold, as defined in [2.101](#) on the date of award of this contract, and the acquisition-
 - (1) Is set aside for small business concerns; or
 - (2) Cannot be set aside for small business concerns (see [19.502-2](#)), and does not exceed \$50,000).
 - (B) *Alternate I* (OCT 2022) (Applies if the Contracting Officer has filled in the domestic content threshold below, which will apply to the entire contract period of performance. Substitute the following sentence for the first sentence of paragraph (1)(ii)(A) of the definition of *domestic end product* in paragraph (a) of [52.225-1](#): (A) The cost of its components mined, produced, or manufactured in the United States exceeds ____ percent of the cost of all its components. [*Contracting officer to insert the percentage per instructions at [13.302-5\(d\)\(4\)](#).*])
- (xix) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations., Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792) (Applies to contracts greater than the threshold specified in FAR [26.404](#) on the date of award of this contract, that provide for the provision, the service, or the sale of food in the United States).
- (xx) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (OCT 2013)(Applies when the payment will be made by electronic funds transfer (EFT) and the payment office uses the System for Award Management (SAM) as its source of EFT information).
- (xxi) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (JUL 2013) (Applies when the payment will be made by EFT and the payment office does not use the SAM database as its source of EFT information).
- (xxii) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (xxiii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#))(Applies to supplies transported by ocean vessels (except for the types of subcontracts listed at [47.504\(d\)](#)).
- (xxiv) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) ([49 U.S.C. 40118\(g\)](#)). (Applies to contracts with a U.S.-flag carrier for the transportation by air of passengers; does not apply to contracts awarded by the Department of Defense or contracts for commercial products).

(2) Listed below are additional clauses that may apply:

- (i) [52.204-21](#), Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) (Applies to contracts when the contractor or a subcontractor at any tier may have Federal contract information residing in or transiting through its information system.)
- (ii) [52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (JAN 2025) (Applies to contracts over the threshold specified in FAR [9.405-2\(b\)](#) on the date of award of this contract).
- (iii) [52.211-17](#), Delivery of Excess Quantities (SEPT 1989) (Applies to fixed-price supplies).

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- (iv) [52.247-29](#), F.o.b. Origin (FEB 2006) (Applies to supplies if delivery is f.o.b. origin).
(v) [52.247-34](#), F.o.b. Destination (JAN 1991) (Applies to supplies if delivery is f.o.b. destination).

(c) *FAR 52.252-2, Clauses Incorporated by Reference (Feb 1998)*. This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es)

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

- 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
- 52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
- 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015)
- 52.219-6 NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (NOV 2020)
- 52.219-28 POST AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)
- 52.222-6 CONSTRUCTION WAGE RATE REQUIREMENTS (AUG 2018)
- 52.222-7 WITHHOLDING OF FUNDS (MAY 2014)
- 52.222-8 PAYROLLS AND BASIC RECORDS (JUL 2021)
- 52.222-10 COMPLIANCE WITH COPELAND ACT REQUIREMENTS (FEB 1988)
- 52.222-11 SUBCONTRACTS (LABOR STANDARDS) (MAY 2014)
- 52.222-12 CONTRACT TERMINATION - DEBARMENT (MAY 2014)
- 52.222-13 COMPLIANCE WITH CONSTRUCTION WAGE RATE REQUIRMENTS AND RELATED REGULATIONS (MAY 2014)
- 52.222-14 DISPUTES CONCERNING LABOR STANDARDS (FEB 1988)
- 52.222-15 CERTIFICATION OF ELIGIBILITY (MAY 2014)
- 52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)
ALTERNATE I (JUL 1995)
- 52.225-9 BUY AMERICAN—CONSTRUCTION MATERIALS (OCT 2022)
- 52.226-7 DRUG-FREE WORKPLACE (MAY 2024)
- 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
- 52.227-4 PATENT INDEMNITY—CONSTRUCTION CONTRACTS (DEC 2007)
- 52.228-2 ADDITIONAL BOND SECURITY (OCT 1997)
- 52.228-5 INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
- 52.228-12 PROSPECTIVE SUBCONTRACTOR REQUESTS FOR BONDS (DEC 2022)
- 52.228-14 IRREVOCABLE LETTER OF CREDIT (NOV 2014)
- 52.232-5 PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)
- 52.232-16 PROGRESS PAYMENTS (NOV 2021)
- 52.232-23 ASSIGNMENT OF CLAIMS (MAY 2014)
- 52.232-27 PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2017)
- 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)
- 52.236-2 DIFFERING SITE CONDITIONS (APR 1984)
- 52.236-3 SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (APR 1984)
- 52.236-5 MATERIAL AND WORKMANSHIP (APR 1984)
- 52.236-6 SUPERINTENDENCE BY THE CONTRACTOR (APR 1984)
- 52.236-7 PERMITS AND RESPONSIBILITIES (NOV 1991)
- 52.236-8 OTHER CONTRACTS (APR 1984)
- 52.236-9 PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS (APR 1984)
- 52.236-10 OPERATIONS AND STORAGE AREAS (APR 1984)
- 52.236-11 USE AND POSSESSION PRIOR TO COMPLETION (APR 1984)
- 52.228-13 Alternative Payment Protections (JULY 2000)
- 52.228-14 Irrevocable Letter of Credit. (NOV 2014)
- 52.228-15 Performance and Payment Bonds – Construction (JUN 2020)

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52.236-12 CLEANING UP (APR 1984)

52.236-13 ACCIDENT PREVENTION (NOV 1991)

52.236-14 AVAILABILITY AND USE OF UTILITY SERVICES (APR 1984)

52.236-17 Layout of Work

APR 1984

52.236-21 SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (FEB 1997)

52.236-26 PRECONSTRUCTION CONFERENCE (FEB 1995)

52.243-5 CHANGES AND CHANGED CONDITIONS (APR 1984)

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(d) *FAR 52.246-12 – Inspection of Construction.* The contractor shall maintain an adequate inspection system and perform such inspections as will ensure that the work performed under the contract conforms to contract requirements. (See full clause for all requirements)

(e) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence, such as acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(f) *FAR 52.249-1 - Termination for Convenience of the Government(Fixed-Price)(Short Form)(APR 1984).* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience in accordance with part 49 of the Federal Acquisition Regulation in effect on the date of this contract. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges that the Contractor can demonstrate to the satisfaction of the Government, using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided. (See full clause for all requirements)

(g) *FAR 52.249-10 - Default (Fixed-Price Construction)(APR 1984).* In accordance with part 49 of the Federal Acquisition Regulation in effect on the date of this contract, the Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for default, the Government shall not be liable to the Contractor for any amount for work not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience. (See full clause for all requirements)

(h) *FAR 52.246-21 – Warranty of Construction (MAR 1994).* The Contractor warrants and implies that the work performed under this contract conforms to the contract requirements and is free of any defect in equipment, material, or designed, or workmanship performed by the Contractor or any subcontractor or supplier at any tier. (See full clause for all requirements).

(i) *Optional Items* - The Government may require the delivery of the numbered optional line items, identified in the Schedule as an optional items, at the price stated in the Schedule. The Contracting Officer may exercise any of the

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optional item(s) at the time of initial award or by written notice to the Contractor within the first 365 calendars after award. The addition of the optional item(s) should not have any impact on final overall schedule, unless otherwise addressed in writing to the Contracting Officer within thirty (30) calendar days after the option is exercised. The written notification of scheduling impacts only applies to any optional item that was NOT included in the initial award.

(End of clause)

CLAUSES INCORPORATED BY FULL TEXT

1452.203-70 RESTRICTIONS ON ENDORSEMENTS (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205–1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

1452.215-70 EXAMINATION OF RECORDS BY THE DEPARTMENT OF THE INTERIOR (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215–2(d)), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

1452.228-70 LIABILITY INSURANCE. (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$100,000 each person*
\$500,000 each occurrence*
\$1,000,000 property damage*

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(End of clause)

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1452.236-70 Prohibition Against Use of Lead-based Paint.

Prohibition Against Use of Lead-Based Paint - Department of the Interior (JUL 1996)

Paint containing more than .06 percent by weight of lead in paint, or the equivalent measure of lead in the dried film of paint already applied, shall not be used in the construction or rehabilitation of residential structures under this contract or any resulting subcontracts.

(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022) (DEVIATION OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that

have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are—

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are—

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees to the following requirements in the performance of a contract assigned a North American Industry Classification System (NAICS) code applicable to this contract:

(1) Services (except construction). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(i) The following services may be excluded from the 50 percent limitation:

(A) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code (238210), Electrical Contractors and Other Wiring Installation Contractors.

(B) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not

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similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(3) General construction. It will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded.

(4) Construction by special trade contractors. It will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause –
[Contracting Officer check as appropriate.]

X By the end of the base term of the contract and then by the end of each subsequent option period; or

By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

52.222-9 APPRENTICES AND TRAINEES (JUL 2005) (DEVIATION FEB 2025)

(a) Apprentices. (1) An apprentice will be permitted to work at less than the predetermined rate for the work performed when employed-

(i) Pursuant to and individually registered in a bona fide apprenticeship program registered with the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS) or with a State Apprenticeship Agency recognized by the OATELS; or

(ii) In the first 90 days of probationary employment as an apprentice in such an apprenticeship program, even though not individually registered in the program, if certified by the OATELS or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice.

(2) The allowable ratio of apprentices to journeymen on the job site in any craft classification shall not be greater than the ratio permitted to the Contractor as to the entire work force under the registered program.

(3) Any worker listed on a payroll at an apprentice wage rate, who is not registered or otherwise employed as stated in paragraph (a)(1) of this clause, shall be paid not less than the applicable wage determination for the classification of work actually performed. In addition, any apprentice performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed.

(4) Where a Contractor is performing construction on a project in a locality other than that in which its program is registered, the ratios and wage rates (expressed in percentages of the journeyman's hourly rate) specified in the Contractor's or subcontractor's registered program shall be observed. Every apprentice must be paid at not less than the rate specified in the registered program for the apprentice's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination.

(5) Apprentices shall be paid fringe benefits in accordance with the provisions of the apprenticeship program. If the apprenticeship program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination.

(6) In the event OATELS, or a State Apprenticeship Agency recognized by OATELS, withdraws approval of an

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apprenticeship program, the Contractor will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(b) Trainees.

(1) Except as provided in 29 CFR 5.16, trainees will not be permitted to work at less than the predetermined rate for the work performed unless they are employed pursuant to and individually registered in a program which has received prior approval, evidenced by formal certification by the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS). The ratio of trainees to journeymen on the job site shall not be greater than permitted under the plan approved by OATELS.

(2) Every trainee must be paid at not less than the rate specified in the approved program for the trainee's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination. Trainees shall be paid fringe benefits in accordance with the provisions of the trainee program. If the trainee program does not mention fringe benefits, trainees shall be paid the full amount of fringe benefits listed in the wage determination unless the Administrator of the Wage and Hour Division determines that there is an apprenticeship program associated with the corresponding journeyman wage rate in the wage determination which provides for less than full fringe benefits for apprentices. Any employee listed on the payroll at a trainee rate who is not registered and participating in a training plan approved by the OATELS shall be paid not less than the applicable wage rate in the wage determination for the classification of work actually performed. In addition, any trainee performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate in the wage determination for the work actually performed.

(3) In the event OATELS withdraws approval of a training program, the Contractor will no longer be permitted to utilize trainees at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(c) ~~Equal employment opportunity.~~ The utilization of apprentices, trainees, and journeymen under this clause shall be in conformity with the equal employment opportunity requirements of Executive Order 11246, as amended, and 29 CFR Part 30.

(End of clause)

52.222-55 MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 DEVIATION (OCT 2023)

(a) Definitions. As used in this clause—

United States means the 50 states, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act (43 U.S.C. 1331, *et seq.*).

Worker—

(1) (i) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 14026, and—

(A) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV);

(B) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and

(C) Regardless of the contractual relationship alleged to exist between the individual and the employer.

(ii) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c).

(iii) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

(2) (i) A worker performs *on* a contract if the worker directly performs the specific services called for by the contract; and

(ii) A worker performs *in connection* with a contract if the worker's work activities are necessary to the performance of a contract but are not the specific services called for by the contract.

(b) Executive Order Minimum wage rate.

(1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a minimum hourly wage rate of \$15.00 per hour beginning January 30, 2022.

(2) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2023, and annually

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thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90 days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on <https://www.sam.gov> (or any successor website), and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract.

(3) (i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance, but will not otherwise include any amount for general and administrative costs, overhead, or profit.

(ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any subcontractor requests for such price adjustment.

(iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause, and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute.

(4) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

(5) A pay period under this clause may not be longer than semi-monthly, but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued.

(6) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 23.230, Deductions.

(7) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof.

(8) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage law or any applicable law or municipal ordinance or any applicable contract establishing a minimum wage higher than the E.O. 14026 minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart.

(9) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate.

(10) The Contractor shall follow the policies and procedures in 29 CFR 23.240(b) and 23.280 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than \$30 a month in tips.

(c) (1) This clause applies to workers as defined in paragraph (a). As provided in that definition–

(i) Workers are covered regardless of the contractual relationship alleged to exist between the contractor or subcontractor and the worker;

(ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and

(iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered.

(2) This clause does not apply to–

(i) Contracts or subcontracts to which the States of Texas, Louisiana, or Mississippi, including their agencies, are a party;

(ii) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., i.e. those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts;

(iii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and

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214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to-

(A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a) ;

(B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b) ;
and

(C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

(d) Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/agencies/whd/government-contracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

(e) Payroll Records.

(1) The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker:

- (i) Name, address, and social security number;
- (ii) The worker's occupation(s) or classification(s);
- (iii) The rate or rates of wages paid;
- (iv) The number of daily and weekly hours worked by each worker;
- (v) Any deductions made; and
- (vi) Total wages paid.

(2) The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer.

(3) The Contractor shall make a copy of the contract available, as applicable, for inspection or transcription by authorized representatives of the Administrator.

(4) Failure to comply with this paragraph (e) shall be a violation of 29 CFR 23.260 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected.

(5) Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.

(f) Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.

(g) Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld, from the Contractor under this or any other Federal contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.

(h) Disputes. Department of Labor has set forth in 29 CFR 23.510, Disputes concerning contractor compliance, the procedures for resolving disputes concerning a contractor's compliance with Department of Labor regulations at 29 CFR part 23. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.

(i) Antiretaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause, or has testified or is about to testify in any such proceeding.

(j) Subcontractor compliance. The Contractor is responsible for subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due subcontractor workers.

(k) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all

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subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.
(End of clause)

52.223-2 REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock.

The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (~~7 CFR 3201.2~~**[7 CFR 4270.2]**).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

(a) That are listed by USDA in a procurement guideline (~~7 CFR part 3201, subpart B~~) **available at <https://www.biopreferred.gov/resources/categories.html>**; and

(b) For which USDA has provided purchasing recommendations (~~available at <https://www.biopreferred.gov>~~ **or 7 CFR part 4270**).

(b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

(1) October 31 of each year during contract performance;

and

(2) At the end of contract performance.

52.223-10 WASTE REDUCTION PROGRAM (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Recycling means the series of activities, including collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use in the form of raw materials in the manufacture of products other than fuel for producing heat or power by combustion.

Waste prevention means any change in the design, manufacturing, purchase, or use of materials or products (including packaging) to reduce their amount or toxicity before they are discarded. Waste prevention also refers to the reuse of products or materials.

Waste reduction means preventing or decreasing the amount of waste being generated through waste prevention, recycling, or purchasing recycled and environmentally preferable products.

(b) ~~Consistent with the requirements of section 207 of Executive Order 14057, the~~**[The]** Contractor shall establish a program to promote cost-effective waste reduction in all operations and facilities covered by this contract. The Contractor's programs shall comply with applicable Federal, State, and local requirements, specifically including Section 6002 of the Resource Conservation and Recovery Act (42 U.S.C. 6962, *et seq.*) and implementing regulations (40 CFR part 247).

(End of clause)

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52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024 (DEVIATION FEB 2025))

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock.

The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (~~7 CFR 3204.2~~**[7 CFR part 4270.2]**).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means ~~products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:~~

~~—(1) *Statutory purchasing programs.*~~

~~—(i)**[(1)]** Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).~~

~~—(ii)**[(2)]** Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).~~

~~—(iii)**[(3)]** Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (~~7 CFR part 3204~~**[7 CFR part 4270]**) (<https://www.biopreferred.gov>).~~

~~—(iv)**[(4)]** Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap>).~~

~~(2) *Required EPA purchasing programs.*~~

~~—(i) WaterSense® labeled (water-efficient) products and services (<https://www.epa.gov/watersense/watersense-products>).~~

~~—(ii) Safer Choice-certified products (products that contain safer chemical ingredients) (<https://www.epa.gov/saferchoice/products>).~~

~~—(iii) Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing>).~~

(c) *Requirements.*

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a. The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

b. The Contractor shall ensure that the sustainable products and services required by this contract are—

- (1) Delivered to the Government;
- (2) Furnished for use by the Government;
- (3) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

~~—(3)(i) Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and~~

~~—(ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.~~

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which **[statutory]** purchasing programs apply to a specific product or service.

(End of clause)

52.228-11 INDIVIDUAL SURETY—PLEDGE OF ASSETS (FEB 2021)(DEVIATION MAY 2023)

(a) The Contractor shall obtain from each person acting as an individual surety on a performance bond or a payment bond—

- (1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) 28.203–1; and
- (2) Standard Form 28, Affidavit of Individual Surety, except that the words “being duly sworn, depose and say” on the Standard Form 28 are replaced with the word “affirm” and the Standard Form 28 is not required to be sworn and notarized in block 12.

(b) The Contracting Officer may release a portion of the security interest on the individual surety's assets based upon substantial performance of the Contractor's obligations under its performance bond. The security interest in support of a performance bond shall be maintained—

- (1) Contracts for the construction, alteration, or repair of any public building or public work of the Federal Government exceeding \$150,000 which require performance and payment bonds (40 U.S.C. 3131). For 1 year following final payment, or until resolution of all pending claims filed against the payment bond during the 1- year period following final payment, whichever is later.
- (2) Contracts subject to alternative payment protection (see FAR 28.102-1(b)(1)). For the full contract performance period plus 1 year.
- (3) Other contracts not subject to the requirements of paragraph (c)(1) of this clause. For 90 days following final payment.

(d) The Contracting Officer may allow the Contractor to substitute an individual surety, for a performance or payment bond, after contract award. The Contractor shall comply with the requirements of paragraph (a) of this clause within the timeframe established by the Contracting Officer.

(End of clause)

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52.228-13 ALTERNATIVE PAYMENT PROTECTIONS (JULY 2000)

The Contractor shall submit one of the following payment protections:

1. *Payment Bond*
2. *Irrevocable Letter of Credit*
3. *Certificates of Deposit*

The amount of the payment protection shall be 100 percent of the contract price.

The submission of the payment protection is required within 10 days of contract award.

The payment protection shall provide protection for the full contract performance period plus a one-year period.

Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.

(End of clause)

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and commercially available off-the-shelf item have the meanings contained in Federal Acquisition Regulation (FAR) [2.101](#).

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c) (1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR [3.1004](#)(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(ii) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.

(iii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

(iv) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017).

(v) [52.204-21](#), Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause [52.204-21](#).

(vi) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

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- (vii) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (viii) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- (ix)
- (A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).
- (B) Alternate I (Dec 2023) of [52.204-30](#).
- (x) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C.637](#)(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702](#)(a) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
- (xi) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).
- (xii) [52.222-26](#), Equal Opportunity (Sept 2016) (E.O. 11246).
- (xiii) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C.4212(a));
- (xiv) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020)(29 U.S.C.793).
- (xv) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C.4212).
- (xvi) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (xvii)
- (A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (Mar 2015) of [52.222-50](#)(22 U.S.C. chapter 78 and E.O. 13627).
- (xviii) [52.222-55](#), Minimum Wages for Contractor Workers under Executive Order 14026 (Jan 2022), if flow down is required in accordance with paragraph (k) of FAR clause [52.222-55](#).
- (xix) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause [52.222-62](#).
- (xx)
- (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)) if flow down is required in accordance with [52.224-3](#)(f).
- (B) Alternate I (Jan 2017) of [52.224-3](#), if flow down is required in accordance with [52.224-3](#)(f) and the agency specifies that only its agency-provided training is acceptable).
- (xxi) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxii) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) , if flow down is required in accordance with paragraph (c) of FAR clause [52.232-40](#).
- (xxiii) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- (xxiv) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C.2631), if flow down is required in accordance with paragraph (d) of FAR clause [52.247-64](#).
- (2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.
- (d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of clause)

52.252-6 – Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any _____ [insert regulation name] (48 CFR _____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

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PART III – LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

SECTION J – LIST OF ATTACHMENTS

	Document Title	Pages
Attachment 1	SOW GATE Water Main Repairs	17
Attachment 2	Wage Determination, NY20260003	16
Attachment 3	Price Schedule	1
Attachment 4	Past Performance	3

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PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION K – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

52.252-1 – Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov>

52.204-7	System for Award Management	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.211-6	Brand Name or Equal	AUG 1999

52.201-1 ACQUISITION 360: VOLUNTARY SURVEY (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025) (DEVIATION FEB 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this *acquisition* is **237110**.

(2) The small business size standard is **\$45 Million**.

(3) The small business size standard for a concern that submits an *offer*, other than on a *construction* or *service acquisition*, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for *information technology* value-added resellers under NAICS code _____ if the *acquisition*—

(i) Is set aside for small business and has a value above the *simplified acquisition threshold*;

(ii) Uses the *HUBZone* price evaluation preference regardless of dollar value, unless the *offeror* waives the price evaluation preference; or

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(iii) Is an 8(a), *HUBZone*, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at [52.204-7](#), *System for Award Management*, is included in this *solicitation*, paragraph (d) of this provision applies.

(2) If the provision at [52.204-7](#), *System for Award Management*, is not included in this *solicitation*, and the *Offeror* has an active registration in the *System for Award Management (SAM)*, the *Offeror* may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the *solicitation*. The *Offeror* shall indicate which *option* applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the *offeror* has completed the individual representations and certifications in the *solicitation*.

(c)(1) The following representations or certifications in SAM are applicable to this *solicitation* as indicated:

(i) [52.203-2](#), Certificate of Independent Price Determination. This provision applies to *solicitations* when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The *acquisition* is to be made under the *simplified acquisition procedures* in [part 13](#);

(B) The *solicitation* is a request for technical proposals under two-step sealed bidding procedures; or

(C) The *solicitation* is for utility services for which rates are set by law or regulation.

(ii) [52.203-11](#), Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to *solicitations* expected to exceed \$150,000.

(iii) [52.203-18](#), Prohibition on *Contracting* with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all *solicitations*.

(iv) [52.204-3](#), Taxpayer Identification. This provision applies to *solicitations* that do not include the provision at [52.204-7](#), *System for Award Management*.

(v) [52.204-5](#), Women-Owned Business (Other Than Small Business). This provision applies to *solicitations* that—

(A) Are not set aside for small business concerns;

(B) Exceed the *simplified acquisition threshold*; and

(C) Are for contracts that will be performed in the *United States* or its *outlying areas*.

(vi) [52.204-26](#), Covered Telecommunications Equipment or Services-Representation. This provision applies to all *solicitations*.

(vii) [52.209-2](#), Prohibition on *Contracting* with Inverted Domestic Corporations-Representation.

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(viii) [52.209-5](#), Certification Regarding Responsibility Matters. This provision applies to *solicitations* where the contract value is expected to exceed the *simplified acquisition threshold*.

(ix) [52.209-11](#), Representation by Corporations Regarding Delinquent Tax Liability or a Felony *Conviction* under any Federal Law. This provision applies to all *solicitations*.

(x) [52.214-14](#), Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) [52.215-6](#), Place of Performance. This provision applies to *solicitations* unless the place of performance is specified by the Government.

(xii) [52.219-1](#), Small Business Program Representations (Basic, *Alternates* I, and II). This provision applies to *solicitations* when the contract is for *supplies* to be delivered or services to be performed in the *United States* or its *outlying areas*, or when the *contracting officer* has applied [part 19](#) in accordance with [19.000](#)(b)(1)(ii).

(A) The basic provision applies when the *solicitations* are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its *Alternate* I applies to *solicitations* issued by DoD, NASA, or the Coast Guard.

(C) The provision with its *Alternate* II applies to *solicitations* that will result in a *multiple-award contract* with more than one NAICS code assigned.

(xiii) [52.219-2](#), Equal Low Bids. This provision applies to *solicitations* when *contracting* by sealed bidding and the contract is for *supplies* to be delivered or services to be performed in the *United States* or its *outlying areas*, or when the *contracting officer* has applied [part 19](#) in accordance with [19.000](#)(b)(1)(ii).

(xiv) [52.222-22](#), Previous Contracts and Compliance Reports. This provision applies to *solicitations* that include the clause at [52.222-26](#), Equal Opportunity.

(xv) [52.222-25](#), Affirmative Action Compliance. This provision applies to *solicitations*, other than those for *construction*, when the *solicitation* includes the clause at [52.222-26](#), Equal Opportunity.

(xvi) [52.222-38](#), Compliance with Veterans' Employment Reporting Requirements. This provision applies to *solicitations* when it is anticipated the contract award will exceed the *simplified acquisition threshold* and the contract is not for *acquisition of commercial products or commercial services*.

(xvii) [52.223-1](#), *Biobased Product* Certification. This provision applies to *solicitations* that require the delivery or specify the use of USDA–designated items; or include the clause at [52.223-2](#), *Affirmative Procurement of Biobased Products Under Service and Construction Contracts*.

(xviii) [52.223-4](#), *Recovered Material* Certification. This provision applies to *solicitations* that are for, or specify the use of, EPA–designated items.

(xix) [52.223-22](#), Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to *solicitations* that include the clause at [52.204-7](#).)

(xx) [52.225-2](#), Buy American Certificate. This provision applies to *solicitations* containing the clause at [52.225-1](#).

(xxi) [52.225-4](#), Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, *Alternates* II and III.) This provision applies to *solicitations* containing the clause at [52.225-3](#).

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(A) If the *acquisition* value is less than \$50,000, the basic provision applies.

(B) If the *acquisition* value is \$50,000 or more but is less than \$92,319, the provision with its *Alternate II* applies.

(C) If the *acquisition* value is \$92,319 or more but is less than \$100,000, the provision with its *Alternate III* applies.

(xxii) [52.225-6](#), Trade Agreements Certificate. This provision applies to *solicitations* containing the clause at [52.225-5](#).

(xxiii) [52.225-20](#), Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all *solicitations*.

(xxiv) [52.225-25](#), Prohibition on *Contracting* with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all *solicitations*.

(xxv) [52.226-2](#), *Historically Black College or University and Minority Institution* Representation. This provision applies to *solicitations* for research, studies, *supplies*, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the *Contracting Officer*:

[*Contracting Officer check as appropriate.*]

XX (i) [52.204-17](#), Ownership or Control of *Offeror*.

XX (ii) [52.204-20](#), Predecessor of *Offeror*.

__ (iii) [52.222-18](#), Certification Regarding Knowledge of Child Labor for Listed *End Products*.

__ (iv) [52.222-48](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

__ (v) [52.222-52](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services- Certification.

__ (vi) [52.223-9](#), with its *Alternate I*, Estimate of Percentage of *Recovered Material* Content for EPA– Designated *Products* (*Alternate I* only).

__ (vii) [52.227-6](#), Royalty Information.

__ (A) Basic.

__ (B) *Alternate I*.

__ (viii) [52.227-15](#), Representation of Limited Rights Data and Restricted *Computer Software*.

(d) The *offeror* has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the *offeror* verifies by submission of the *offer* that the representations and certifications currently posted electronically that apply to this *solicitation* as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this *solicitation* (including the business size standard applicable to the NAICS code referenced for this *solicitation*), as of

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the date of this *offer* and are incorporated in this *offer* by reference (see FAR [4.1201](#)); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this *offer* and are current, accurate, and complete as of the date of this *offer*.

FAR Clause # Title Date Change

Any changes provided by the *offeror* are applicable to this *solicitation* only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-24 REPRESENTATIONS REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES AND EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions*. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation*. The Offeror represents that—

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(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

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52.223-1 Biobased Product Certification (May 2024) (Deviation Feb 2025)

As required by the Farm Security and Rural Investment Act of 2002 ([7 U.S.C. 8101\(4\)](#)) and the Energy Policy Act of 2005 ([7 U.S.C. 8102\(a\)\(2\)\(F\)](#)), the offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture in [7 CFR part 3201, subpart B](#)) to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of provision)

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SECTION L – INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/content/regulations>

(End of provision)

52.204-22	Alternative Line Item Proposal	JAN 2017
52.215-16	Facilities Capital Cost of Money	JUN 2003
52.222-5	Construction Wage Rate Requirements – Secondary Site of the Work	MAY 2014
52.225-10	Notice of Buy American Act Requirement – Construction Materials	MAY 2014
52.232-13	Notice of Progress Payments	APR 1984
52.252-5	Authorized Deviations in Provisions	NOV 2020

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1)

1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION—DEPARTMENT OF THE INTERIOR (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

- (1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.
- (2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

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(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

1452.233-2 Service of Protest Department of the Interior (JUL 1996) (Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer by obtaining written and dated acknowledgment of receipt from:

NPS, Contracting Operations (ConOps) East, NY MABO,
Attn: Roselyn Sessoms, Contracting Officer,
Via electronic commerce (e-mail) to roselyn_sessoms@ios.doi.gov

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(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of provision)

52.222-5 CONSTRUCTION WAGE RATE REQUIREMENTS—SECONDARY SITE OF THE WORK (MAY 2014)

(a)

(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at [52.222-6](#), Construction Wage Rate Requirements, of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)

(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.

(2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of provision)

52.225-10 NOTICE OF BUY AMERICAN REQUIREMENT – CONSTRUCTION MATERIALS (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material,"

"domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials" (Federal Acquisition Regulation (FAR) clause [52.225-9](#)).

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR [52.225-9](#) in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) *Evaluation of offers.*

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR [52.225-9](#).

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) *Alternate offers.*

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR [52.225-9](#), the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate [Standard Form 1442](#) for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR [52.225-9](#) for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR [52.225-9](#) does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material.

An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of Provision)

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52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at [52.236-2](#), Differing Site Conditions, and [52.236-3](#), Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: Jim Estioco

Address: Gateway National Recreation Area , 210 New York Avenue, Staten Island, NY 10305

Telephone: (718) 702-5691

(End of provision)

FAR 52.236-28 - Preparation of Proposals -- Construction (Oct 1997)

(a) Proposals must be

(1) submitted on the forms furnished by the Government or on copies of those forms, and

(2) manually signed. The person signing a proposal must initial each erasure or change appearing on any proposal form.

(b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including --

(1) Lump sum price;

(2) Alternate prices;

(3) Units of construction; or

(4) Any combination of paragraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words "no proposal" in the space provided for any item on which no price is submitted.

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

(End of Provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

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Instructions for the Submission of Quotation and Other Information – Competitive Source Selection

Instructions to Offerors/Quoters

(a) *Definitions.* As used in this provision --

“Discussions” are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.”

“In writing,” “writing,” or “written” means any worded or numbered expression which can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

“Proposal/quote modification” is a change made to a proposal/quote before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

“Proposal/quote revision” is a change to a proposal/quote made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

“Time,” if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) *Submission, modification, revision, and withdrawal of proposals/quotes.*

(1) Only electronic commerce is permitted by the solicitation, proposals/quotes and modifications to proposals/quotes shall only be submitted through electronic commerce (email).

(i) addressed to the specific individuals identified in the solicitation, and

(ii) The subject line must include, the solicitation number, and the name of the project.

(2) The first page of the proposal/quote must show --

(i) The solicitation number;

(ii) The name, address, and telephone and electronic email address of the offeror/quoter;

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and electronic (email) addresses of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

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(v) Name, title, and signature of person authorized to sign the proposal/quote. Proposals/quotes signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals/quotes.

(i) Offerors/quoters are responsible for submitting proposals/quotes, and any modification, or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal/quote, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and --

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal/quote received.

(B) However, a late modification of an otherwise successful proposal/quote that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation time and date recorded on electronic (emails) received.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals/quotes cannot be received at the office designated for receipt of proposals/quotes by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals/quotes will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals/quotes may be withdrawn by written electronic (email) notice received at any time before award.

(4) Unless otherwise specified in the solicitation, the offeror/quoter may propose to provide any item or combination of items.

(5) Offerors/quoters shall submit proposals/quotes in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

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(6) Offerors/quoters may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors/quoters may submit revised proposals/quotes only if requested or allowed by the Contracting Officer.

(8) Proposals/quotes may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals/quotes in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors/quoters that include in their proposals/quotes data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall --

(1) Mark the title page with the following legend:

This proposal/quote includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) *Contract award.*

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal/quote(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government per FAR 13.106-2 (a)(3) all proposals/quotes shall be considered unless stated elsewhere.

(3) The Government may waive informalities and minor irregularities in proposals/quotes received.

(4) The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

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(7) Exchanges with offerors/quoters after receipt of a proposal/quote do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal/quote is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal/quote may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the Contracting Officer in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal/quote emailed to the successful offeror/quoter within the time specified in the proposal/quote shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors/quoters, the Government shall disclose the following information, if applicable:

- (i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.
- (ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.
- (iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.
- (iv) A summary of the rationale for award.
- (v) For acquisitions of commercial items, the make and model of the item to be delivered by the successful offeror.
- (vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

A. GENERAL

- (1) Each quoter must:

Submit the required quotation package documents as instructed below – see section below entitled "QUOTATION PACKAGE (WHAT TO SUBMIT)." Failure to provide the required information may be cause for rejection of the quotation.

- (2) Quotations shall only be accepted through electronic mail addressed to:
roselyn_sessoms@ios.doi.gov

Include the Request for Quotation (RFQ) number (**140P4526Q0015**) in the subject line of your email.

- (3) Submission deadline. We must receive your quote by the deadline specified in Block 13 of the SF 1442. We will not consider any quote that we receive after the deadline unless we receive it before we issue a purchase order and considering it will not delay our purchase. In case of an emergency that delays our operations and makes submission or receipt of your quote

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impossible, we will extend the deadline by one working day.

It is the responsibility of the quoter to verify receipt by the email address recipient listed above on or before the closing date/time of the RFQ.

- (4) Modifications of previously submitted quotations may be made by email to the Contract Specialist before the closing date/time of the RFQ.
- (5) The Government's evaluation of "equal" product requests will be made after contract award as part of the submittal review process (reference FAR 52.236-5).

B. QUESTIONS

Pre-proposal questions shall be submitted a minimum of 7 days prior to the due date and time for proposals. to Ms. Roselyn Sesoms, via email at Roselyn_Sessoms@ios.doi.gov

Contractors are instructed to submit all questions, in writing. Answers will be provided on a consolidated Q&A Document and will be emailed to all interested parties via amendment to the solicitation. **Only questions submitted in writing will be considered.** To be officially considered, questions asked at the Site Visit must also be submitted to the government, in writing by the due date above.

C. QUOTE DUE DATE AND LOCATION

To be considered for award, all proposals for this solicitation must be received no later than the **date and time noted in Block 13a of the SF1442** unless changed by amendment. Quoters are responsible for submitting proposals so as to reach the Government office designated in the solicitation by the time specified in the solicitation. Quoters should consider and account for potential delays in transmissions between when an electronic submission is submitted and when an electronic submission is received. Quoters shall verify receipt of proposals; late quotes will not be accepted.

D. SUBMISSION REQUIREMENTS

1. Quotes shall be submitted via email. Quotes submitted via any means other than email shall not be accepted.
2. Quotes shall be sent to all of the following:
Contracting Officer, Roselyn Sessoms, roselyn_sessoms@ios.doi.gov
3. Title subject line for all quotes submissions shall contain the solicitation number, Title of Solicitation, and number of total emails, per the following example:
Subj: 140P4526Q0015, email 1 of 3
4. Submit quote in separate VOLUMES (I and II) in the FORMATS specified, containing CONTENTS required. Each volume shall be submitted in separate email attachments documents:
 - i. **Document #1 titled as "Volume I – Non-Price Quote" in PDF format**
 - ii. **Document #2 titled as "Volume II – Price Quote" in PDF format**
5. Size limits:

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- i. The total size limit of each email containing all attachments cannot/shall not exceed 25MB; so please ensure that the total size limit of individual attachments in the email conform with the size limitation for the total email attachment limit
- ii. Page Format Restrictions and Limitations: Proposals will be 8 ½ " x 11" paper except for foldouts used for charts, tables, or diagrams, which may not exceed 11" x 17".

E. VOLUME I, TECHNICAL PROPOSAL – FORMAT, ORGANIZATION, CONTENTS

1. **FORMAT:** Submit (1) one electronic copy. No hard copies shall be submitted.
2. **ORGANIZATION:** Include folders and files for electronic formats named as follows:
 - Factor 1 - Technical Capability
 - Factor 2 - Project Experience
3. **CONTENTS:**

FACTOR 1: TECHNICAL CAPABILITY

The purpose of the technical factor is to assess the offeror's proposed approach, as detailed in its proposal, to satisfy the Government's minimum requirements. The offeror must provide:

- A narrative summary describing how your company will approach, perform, and complete this project. Your proposal should include details on how your firm will perform the planning and construction and ensure codes are met.
- Documentation of the proposed product information/photos/specs sheet
- A construction schedule demonstrating knowledge of the work restrictions, and the coordination of subcontractors. The Construction Schedule should outline the activities of the planning and construction from Notice to Proceed to Completion.

FACTOR 2 – PROJECT EXPERIENCE

Submit the attached "Project Experience" form addressing specific experience aspects below for up to five (5) relevant projects completed in the last seven (7) years. **Submit separate forms for each project.** Key subcontractors can also submit up to three (3) relevant projects completed in the last seven (7) years.

Experience shall demonstrate

- i. Logistics, Coordination, Process – Describe previous experience in working in an urban setting with limited staging and restrictive traffic flow similar to logistics of this solicitation.
- ii. Project Management – Describe construction coordination experience with the owner while minimizing impacts to client/owner on-going operations. Describe Organized management, coordination, and communication of efforts between the prime contractor, its subcontractors, and the owner during construction. Include coordination with owner relative to ongoing owner operations and visitor activities.

F. VOLUME II, BUSINESS AND PRICE PROPOSAL – FORMAT, ORGANIZATION, CONTENTS

1. **FORMAT:** Submit (1) one electronic copy. No hard copies shall be submitted.
2. **ORGANIZATION:** Combine all contents into one document package, titled "Volume II – Price Proposal"
 - a. Solicitation: SF1442

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- b. Amendments (if applicable)
- c. Price
- d. Completed Provisions as described below
- e. Bid Bond
- f. SAM.gov Printout or Section K Representations and Certifications
- g. Completed Limitation on Subcontracting Report Template

3. CONTENTS:

- a. SF1442: Standard Form 1442, Solicitation, Offer, and Award, (Construction, Alteration, or Repair): Complete blocks 14 through 20C only. An official having the authority to contractually bind the offeror's company must sign the SF 1442 in accordance with the procedures prescribed in FAR 4.102.
- b. AMENDMENTS: Acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30 or acknowledged in Block 19 on SF1442
- c. PRICE: provide pricing on Section B of this solicitation. Total price shall be cited and be the same amount list on Solicitation Form SF1442 in **block 17. All pricing to be rounded to the nearest dollar. Alternate pricing and alternate proposals will not be accepted.**
- d. COMPLETED PROVISIONS: Complete and submit the required Provisions 52.204-24 and 52.204-26 "representations regarding certain telecommunications"; and Special requirement 2: key personnel
- e. SECTION K REPRESENTATIONS AND CERTIFICATIONS: Submit a completed copy of provision 52.204-8 shown in section "K" of this solicitation. Complete all required representations and certifications if they are not available at www.SAM.gov. Your firm must maintain current, active registration at www.SAM.gov to be eligible for award and you are encouraged to complete SAM registration before submitting your offer.

SUBCONTRACTING PERCENTAGE WORKSHEET: Complete and submit attachment 5 "Report on Limitation on Subcontracting" form. The form itself requests input of amounts paid; however, for solicitation purposes, input projected amounts based on your proposed pricing and that of your anticipated subcontractors. Refer to Clauses FAR 52.219-14 for associated information.

End of Volume II – Business and Price Proposal requirements.

G. Responsibility Determination

- i. It is the general policy of the Department of the Interior that contract shall be awarded only to contractors determined to be responsible in accordance with Part 9 of the Federal Acquisition Regulations (FAR). No contract shall be awarded to any person or firm unless the Contracting Officer first makes an affirmative determination that the prospective contractor is responsible within the meaning of FAR Part 9.
- ii. Before making a determination of responsibility, the Contracting Officer shall have in their possession or obtain information sufficient to satisfy themselves that a prospective contractor currently meets the minimum FAR Part 9 standards.
- iii. In accordance with Section 9.104 of the Federal Acquisition Regulations, award of a contract will be subject to the Contracting Officer's determination that the offeror meets the following minimum standards for performing the work:
 - Has adequate financial resources;
 - Is able to meet the required delivery or performance dates;
 - Has a satisfactory performance record;

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- Has the organization, experience, accounting and operational controls, and technical skills, or the ability to obtain them;
- Has a satisfactory record of integrity and business ethics;
- Has the necessary production and technical equipment and facilities or the ability to obtain them;
- Is otherwise qualified and eligible to receive an award under applicable laws and regulations.

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SECTION M – EVALUATION FACTORS FOR AWARD

BASIS FOR AWARD

The solicitation and resulting award will be conducted under FAR Part 13 - Simplified Acquisition Procedures. The Government will issue a single contract because of this solicitation to the responsible offeror whose proposal is determined to offer the “best value” to the Government considering a technically acceptable proposal with the lowest evaluated price.

Evaluation of offers will be conducted in accordance with Simplified Acquisition Procedures, which allows the Contracting Officer broad discretion in fashioning suitable evaluation procedures per FAR 13.106-2 (b). Therefore, the Lowest Price Technically Acceptable process as defined in 15.101-2 shall be used in the requirement as authorized by FAR 13.

Additionally, as authorized by FAR 13.106-2 (b)(3) when using price and other factors the offers will be evaluated in efficient and minimally burdensome fashion. The offers will be evaluated in a comparative manner, and there will be no competitive range established as authorized by FAR 13.106-2 (b)(3).

Offerors are advised that in the evaluation process, primary consideration will be given to the technical acceptability of the quotes. Any required documentation that is not provided, will be considered not technically acceptable.

The Government shall evaluate the offeror's proposal against the minimum requirements identified:

5.0 PROPOSAL EVALUATION FACTORS

The Government will evaluate proposals based on the following factors. Award will be made to the responsible offeror whose proposal conforms to the solicitation and is determined to be the most advantageous to the Government, considering technical, past performance, work plan/schedule, and price factors.

5.1 Technical Capability (Pass/Fail)

- Contractor must be licensed in the State of New York to perform water main repairs.
- Provide documentation of at least three similar water infrastructure projects completed in the past five years.
- Submit resumes for the Project Manager, Site Superintendent, and Quality Control (CQC) Manager. Resumes must demonstrate experience in water utility work, OSHA 30 certification, and CQC qualifications (if applicable).
- Project Manager must be on-site at all times during construction activities and act as the primary point of contact with NPS.

5.2 Past Performance (Pass/Fail)

- Provide at least three references for similar projects completed in the last five years.
- References should include client contact information, brief description of work, contract value, completion date, and performance feedback.
- Poor past performance may result in disqualification.

5.3 Work Plan and Schedule (Pass/Fail)

- Submit a work plan that addresses water shutdown coordination, excavation safety, sequence of pipe repairs, and site restoration strategy.
- Include a baseline Critical Path Method (CPM) schedule with major activities, durations, and milestones.
- Work plan will be assessed for feasibility and risk mitigation.

5.4 Price (Pass/Fail)

- Submit a completed Contract Price Schedule with itemized costs for each task.
- Price proposals will be evaluated for fairness, reasonableness, and realism.
- Unbalanced or significantly overstated pricing may result in elimination from consideration.

Adjectival Rating	Description
Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

PRICE EVALUATION.

Price Assessment: The Price Factor will not have an adjectival rating assigned.

The Government shall evaluate the price of the construction services being acquired to determine if the price is fair and reasonable.